

**El Paso County  
Delia Briones  
County Clerk**

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Instrument Number: 00000000077

ma.mendez

Recorded On: 5/8/2026 3:24:25 PM

Number of Pages: 1

NF Pages: 1

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\*\*\*\*\*THIS PAGE IS PART OF THE INSTRUMENT\*\*\*\*\*

Any provision herein which restricts the Sale, Rental or use of the described REAL PROPERTY because of color or race is invalid and unenforceable under federal law.

**File Information**

Document Number 00000000077

Receipt Number 1984892

Fees \$69.00

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State of Texas  
COUNTY OF EL PASO

I hereby certify that this instrument was FILED in the File Number sequence on the date/time printed hereon, and was duly RECORDED in the Official Record of El Paso County, Texas.

Delia Briones  
County Clerk  
El Paso County, TX

A handwritten signature in cursive script that reads "Delia Briones".

**NOTICE OF CONFIDENTIALITY RIGHTS: IF YOU ARE A NATURAL PERSON, YOU MAY REMOVE OR STRIKE ANY OR ALL OF THE FOLLOWING INFORMATION FROM ANY INSTRUMENT THAT TRANSFERS AN INTEREST IN REAL PROPERTY BEFORE IT IS FILED FOR RECORD IN THE PUBLIC RECORDS: YOUR SOCIAL SECURITY OR YOUR DRIVER'S LICENSE NUMBER.**

**NOTICE OF SUBSTITUTE TRUSTEE'S SALE**

STATE OF TEXAS            )  
                                      )  
COUNTY OF EL PASO        )

Notice is hereby given of a public non-judicial foreclosure sale.

1.     Property to be Sold. The property to be sold is

the following described property described in Exhibit "A," attached hereto and fully incorporated herein,

including such other property, real and personal, that may be covered by or otherwise described in the Deed of Trust, as hereinafter defined.

This conveyance will be made subject to any exceptions referenced in the Deed of Trust to the extent the same are still in effect and shall not cover any property that has been released from the liens of the Deed of Trust. In the event the Deed of Trusts are subordinate, the conveyance will be subject to the prior deed(s) of trust.

2.     Date, Time and Place of Sale. The sale is scheduled to be held at the following date, time and place:

Date:            Tuesday, June 2, 2026

Time:            The sale shall commence at a time no earlier than 1:00 p.m. and within three hours thereafter.

Place:           El Paso County Coliseum, 4100 E. Paisano Dr., El Paso, Texas 79905 (or any other area designated by the Commissioner's Court of El Paso County, Texas).

The Deed of Trust permit the Beneficiary to postpone or withdraw, or reschedule the same for another day. In such case the Trustee under the Deed of Trust need not appear at the date, time and place of a scheduled sale to announce the postponement, withdrawal or rescheduling. In such case Notice will be reposted and refiled in accordance with the posting and filing requirements of the Texas Property Code. Such reposting or refiling may be after the date originally scheduled for this sale.

3. Terms of Sale. The sale will be conducted as a public auction to the highest bidder for cash. Those desiring to purchase the property will need to demonstrate their ability to pay cash on the day of sale for the property being sold.

4. Type of Sale. The sale is a non-judicial deed of trust lien and security interest foreclosure sale being conducted pursuant to the power of sale granted under that certain Deed of Trust filed for record on January 29, 2021, under Clerk's File No. 20210009161 of the Real Property Records of El Paso County, Texas (the "Deed of Trust"), from 730 Sunland Park LLC to First American bank, the beneficiary and trustee (the "Deed of Trust").

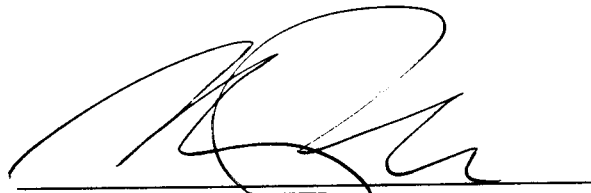
5. Obligations Secured. The Deed of Trust provides that its secure the payment of the indebtedness and obligations therein described (collectively, the "Obligations") including but not limited to the Promissory Note dated January 28, 2021 in the original principal amount of \$2,500,000 from 730 Sunland Park LLC to the order of First American Bank who is the current owner and holder of the Obligations and the Deed of Trust (collectively, the "Beneficiary").

An exact statement of the amount due, owing and secured by the Deed of Trust may be obtained by contacting the Beneficiary as follows:

FIRST AMERICAN BANK  
c/o Merwan N. Bhatti  
Mounce, Green, Myers, Safi, Paxson & Galatzan, P.C.  
P.O. Box 1977  
El Paso, Texas 79999-1977.

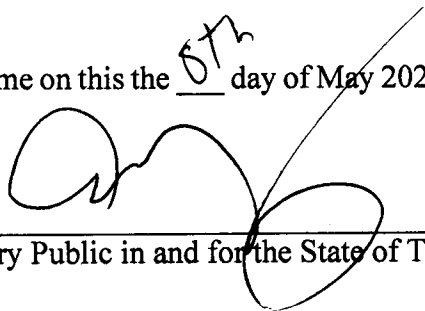
6. Default and Request to Act. Default has occurred under the Deed of Trust and Beneficiary, has requested me, as the Substitute Trustee to conduct this sale. Notice is given that prior to the sale Beneficiary may appoint another person as Trustee to conduct the sale.

DATED the 5<sup>th</sup> day of May 2026.

  
MERWAN N. BHATTI

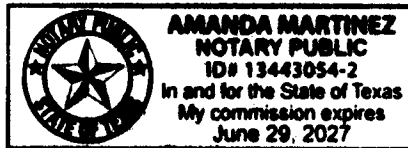
STATE OF TEXAS       )  
COUNTY OF EL PASO    )

This instrument was acknowledged before me on this the 5<sup>th</sup> day of May 2026, by Merwan N. Bhatti;

  
\_\_\_\_\_  
Notary Public in and for the State of Texas

**AFTER RECORDING RETURN TO:**

Merwan N. Bhatti  
Mounce, Green, Myers,  
Safi, Paxson & Galatzan, P.C.  
P.O. Box 1977  
El Paso, Texas 79999-1977



## EXHIBIT A

### TRACT 1:

A portion of Lot 1, Block 4, PARK WEST UNIT THREE, an addition to the City of EL Paso, El Paso County, Texas, according to the plat thereof, filed in Volume 62, Page 8, Plat Records, El Paso County, Texas, being more particularly described by metes and bounds in Exhibit "A-1" attached hereto and made a part hereof for all purposes intended.

### TRACT 2:

Easement rights created in that certain Construction Operation and Reciprocal Easement Agreement dated December 18, 1986, by and between MESA HILLS MALL COMPANY and POPULAR DRY GOODS COMPANY, INC. recorded in Volume 1750, Page 1607, Real Property Records of El Paso County, Texas; as affected by that certain Tie-In Agreement among MESA HILLS MALL COMPANY, ET AL, recorded in Volume 2168, Page 1100, amended in Volume 2504, Page 1102, and amended and restated in Volume 2504, Page 1241, Real Property Records of El Paso County, Texas; all rights assigned to SIMON PROPERTY GROUP (TEXAS) L.P., by Assignment and Assumption Agreement dated December 1, 1993, recorded in Volume 2666, Page 1624, Real Property Records of El Paso County, Texas; Assignment and Assumption Agreement dated October 30, 1995, between POPULAR DRY GOODS COMPANY NKA POPULAR DRY GOODS COMPANY, INC. and SEARS, ROEBUCK AND CO., recorded in Volume 2965, Page 922, Real Property Records of El Paso County, Texas; with an assignment and assumption agreement to and with DILLARD TEXAS OPERATING LIMITED PARTNERSHIP, ET AL, recorded in Volume 3602, Page 393, Real Property Records of El Paso County, Texas; and amended by First Amendment to Construction, Operation and Reciprocal Easement Agreement dated July 11, 2002 between SIMON PROPERTY GROUP (TEXAS), L.P. and SEARS, ROEBUCK AND CO. recorded in Volume 4312, Page 1031, Real Property Records of El Paso County, Texas; and that assignment of Operating Agreement dated May 20, 2014, from SIMON PROPERTY GROUP (TEXAS), LP to SUNLAND PARK

**MALL, LLC, recorded in Clerk's File No. 20140058463, Real Property Records of El Paso County, Texas.**

**TRACT 3:**

**Easement rights created in that certain Construction, Operation and Reciprocal Easement Agreement between MESA HILLS MALL COMPANY and MERVYN'S, recorded in Volume 2008, Page 1808, Real Property Records of El Paso County, Texas; as affected by that certain Tie-In Agreement dated November 1, 1988, between MESA HILLS MALL COMPANY, CONSTRUCTION DEVELOPERS, INCORPORATED, DILLARD DEPARTMENT STORES, INC., POPULAR DRY GOODS COMPANY INC. and MERVYN'S, recorded in Volume 2168, Page 1100, Real Property Records of El Paso County, Texas; as further amended by that certain First Amendment to Tie-In Agreement recorded in Volume 2504, Page 1102, Real Property Records of El Paso County, Texas; and amended and restated by that certain Amended and Restated Tie-In Agreement, recorded in Volume 2504, Page 1241, Real Property Records of El Paso County, Texas; all rights assigned to SIMON PROPERTY GROUP (TEXAS), L.P., by Assignment and Assumption Agreement dated December 1, 1993, recorded in Volume 2666, Page 1624, Real Property Records of El Paso County, Texas; that certain Assignment and Assumption of Operating Agreement dated September 2, 2004, between MERVYN'S LLC and MDS TEXAS REALTY I, LP, recorded in Clerk's File No. 20040088451, Real Property Records of El Paso County, Texas; and that certain Assignment and Assumption of Operating Agreement dated October 26, 2007, between MDS TEXAS REALTY I, LP and MACERICH SUNLAND PARK HOLDINGS, LLC, recorded in Clerk's File No. 20080001914, Real Property Records of El Paso County, Texas; and that assignment of Operating Agreement dated May 20, 2014, from SIMON PROPERTY GROUP (TEXAS), LP to SUNLAND PARK MALL, LLC, recorded in Clerk's File No. 20140058463; and Assignment of Operating Agreement recorded in Clerk's File No. 20140043470; Real Property Records of El Paso County, Texas.**

**TRACT 4:**

**Easement rights created in that certain Reciprocal Easement and Operating Agreement filed in Volume 2168, Page 985, amended in Volume 2504, Page 1088, Real Property Records of El Paso County, Texas, between MESA HILLS MALL COMPANY, CONSTRUCTION DEVELOPERS, INC., and DILLARD DEPARTMENT STORES, INC., as affected by that certain Tie-In Agreement among MESA HILLS MALL COMPANY, et al, filed in Volume 2168, Page 1100, Real Property Records of El Paso County, Texas; as further amended by that certain First Amendment to Tie-In Agreement recorded in Volume 2504, Page 1102, Real Property Records of El Paso County, Texas; and amended and restated by that certain Amended and Restated Tie -In Agreement, recorded in Volume 2504, Page 1241, Real Property Records of El Paso County, Texas; all rights assigned to SIMON PROPERTY GROUP (TEXAS), L.P. by Assignment and Assumption Agreement dated December 1, 1993, recorded in Volume 2666, Page 1624, Real Property Records of El Paso County, Texas; that certain Assignment and Assumption of Operating Agreement dated February 2, 1996, between DILLARD DEPARTMENT STORES, INC., and DILLARD TEXAS OPERATING LIMITED PARTNERSHIP, recorded in Volume 3009, Page 133, Real Property Records of El Paso County, Texas; that certain Assignment and Assumption of Operating Agreement dated February 2, 1996, between CONSTRUCTION DEVELOPERS, INCORPORATED and DILLARD TEXAS**

OPERATING LIMITED PARTNERSHIP, recorded in Volume 3009, Page 139, Real Property Records of El Paso County, Texas; that certain Assignment and Assumption of Operating Agreements dated December 31, 2010, between DILLARD TEXAS, LLC and DILLARD TEXAS CENTRAL, LLC, recorded in Clerk's File No. 20110009323, Real Property Records of El Paso County, Texas; Assignment and Assumption of Operating Agreements between DILLARD TEXAS CENTRAL, LLC and DILLARD TEXAS SOUTH, LLC, dated January 26, 2011, under Clerk's File No. 20110009325; that certain Assignment and Assumption of Operating Agreement dated January 26, 2011, between DILLARD TEXAS SOUTH, LLC and DILLARD'S PROPERTIES, INC., recorded in Clerk's File No. 20110009327, Real Property Records of El Paso County, Texas; and that assignment of Operating Agreement dated May 20, 2014, from SIMON PROPERTY GROUP (TEXAS), LP to SUNLAND PARK MALL, LLC, recorded in Clerk's File No. 20140058463, Real Property Records of El Paso County, Texas; and, most recently, with a Second Amendment to Reciprocal Easement and Operating Agreement, dated September 20, 2019, filed under Clerk's File No. 20190073345, Real Property Records, El Paso County, Texas, by and among SUNLAND PARK MALL, LLC, and DILLARD'S PROPERTIES, INC. (ultimate successor in interest to Construction Developer's Incorporated and Dillard Department Stores, Inc.), which was corrected in a Non Material Correction Affidavit, dated October 8, 2019, filed under Clerk's File No. 20190078460, Real Property Records, El Paso County, Texas.

**TRACT 5:**

Easement rights created in that certain Construction, Operation and Reciprocal Easement Agreement dated April 30, 1990, between MESA HILLS COMPANY LIMITED PARTNERSHIP and J.C. PENNY PROPERTIES, INC., recorded in Volume 2504, Page 1131, Real Property Records of El Paso County, Texas; as affected by that certain Amended and Restated Tie-In Agreement, recorded in Volume 2504, Page 1241, Real Property Records of El Paso County, Texas; all rights assigned to SIMON PROPERTY GROUP (TEXAS), L.P. by Assignment and Assumption Agreement dated December 1, 1993, recorded in Volume 2666, Page 1624, Real Property Records of El Paso County, Texas; that certain Assignment and Assumption Agreement dated January 30, 2004, between THE MAY DEPARTMENT STORES COMPANY and J.C. PENNEY PROPERTY, INC. recorded in Volume 4814, Page 1347, Real Property Records of El Paso County, Texas; that certain Assignment and Assumption Agreement dated January 28, 2006 between FEDERATED RETAIL HOLDINGS, INC. (formerly known as THE MAY DEPARTMENT STORES COMPANY), and MACY'S TX I, LP, recorded in Clerk's File No. 20060012684, Real Property Records of El Paso County, Texas; and that certain Assignment and Assumption Agreement dated January 30, 2007, between MACYS RETAIL HOLDINGS, INC. (as successor in interest by merger to MACY'S TX I, L.P.) and MACYS DEPARTMENT STORES, INC. recorded in Clerk's File No. 20070074838, Real Property Records of El Paso County, Texas; and those certain Assignment and Assumption Agreements, filed under Clerk's File No. 20170029168 (between MACY'S WEST STORES, INC. and MCY SUNLAND PROPERTIES, LLC.), and filed under Clerk's File No. 20180025272 (between MCY PROPERTIES, LLC, and YEK #12, LLC), and filed under Clerk's File No. 20180025273 (between MCY Sunland Properties, LLC., and YEK #12, LLC), all in Real Property Records, El Paso County, Texas; and that assignment of Operating Agreement dated May 20, 2014, from SIMON PROPERTY GROUP (TEXAS), LP to SUNLAND PARK MALL, LLC, recorded in Clerk's File No. 20140058463, Real Property Records of El Paso County, Texas.

**TRACT 6:**

Easement rights created in that certain Construction, Operation and Reciprocal Easement Agreement dated March 1, 1992, between MESA HILLS MALL COMPANY LIMITED PARTNERSHIP and MONTGOMERY WARD LAND CORPORATION, recorded in Volume 2853, Page 305, Real Property Records of El Paso County Texas; assigned in Assignment and Assumption of Construction, Operation and Reciprocal Easement Agreement dated May 28, 1999, between MONTGOMERY WARD LAND CORPORATION, DILLARD TEXAS OPERATING LIMITED PARTNERSHIP, MERCANTILE REAL ESTATE CO., INC. and MERCANTILE KANSAS CITY, INC., recorded in Volume 3602, Page 393, Real Property Records of El Paso County, Texas; and that assignment of Operating Agreement dated May 20, 2014, from SIMON PROPERTY GROUP (TEXAS), LP to SUNLAND PARK MALL, LLC, recorded in Clerk's File No. 20140058463, Real Property Records of El Paso County, Texas; and, most recently, with a First Amendment to the Construction, Operation and Reciprocal Easement Agreement, dated September 20, 2019, filed under Clerk's File No. 20190073344, Real Property Records, El Paso County, Texas, by and among SUNLAND PARK MALL, LLC, and DILLARD TEXAS CENTRAL, LLC, (ultimate successor in interest to Montgomery Ward Land Corporation, et. al.), which was corrected in a Non Material Correction Affidavit, dated October 8, 2019, filed under Clerk's File No. 20190078460, Real Property Records, El Paso County, Texas.

## Exhibit "A-1"



### PRECISION LAND SURVEYORS

10441 VALLE DE ORO DR.

El Paso, Texas 79927

Ph# (915) 222-5227

Being a portion of Lot 1, Block 4,  
Park West Unit Three,  
City of El Paso, El Paso County, Texas  
November 16, 2020;

#### METES AND BOUNDS DESCRIPTION

Description of a parcel of land being a portion of Lot 1, Block 4, Park West Unit Three, City of El Paso, El Paso County, Texas, and being more particularly described by metes and bounds as follows:

Commencing for reference at a found city monument at the intersection of Sunland Park Drive (120' right of way) and Mesa Hills Drive (120' right of way), thence along the centerline of Sunland Park Drive, South  $72^{\circ}57'37''$  West a distance of 365.02 feet to a point, thence leaving said centerline, South  $21^{\circ}54'47''$  East a distance of 60.00 feet to a set "X" on sidewalk at the southerly right of way of Sunland Park Drive and the "TRUE POINT OF BEGINNING".

Thence leaving said right of way, South  $19^{\circ}44'13''$  East a distance of 324.72 feet to a point, from which a found  $1/2''$  rebar with faded cap bears South  $37^{\circ}19'01''$  East a distance of 0.17 feet;

Thence, 232.51 feet along the arc of a non-tangential curve to the left which has a radius of 1348.95 feet, a central angle of  $9^{\circ}52'33''$ , a tangent of 116.54 feet, and a chord which bears South  $58^{\circ}46'20''$  West a distance of 232.22 feet to a point, from which a found "X" on sidewalk bears North  $15^{\circ}17'32''$  West a distance of 0.31 feet;

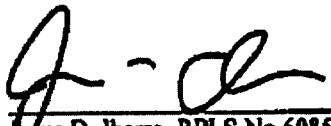
Thence, 52.27 feet along the arc of a curve to the right which has a radius of 29.50 feet, a central angle of  $101^{\circ}31'13''$ , a tangent of 36.12 feet, and a chord which bears North  $75^{\circ}24'19''$  West a distance of 45.70 feet to a point, from which a found "X" on sidewalk bears South  $20^{\circ}15'29''$  East a distance of 0.28 feet;

Thence, 241.85 feet along the arc of a curve to the right which has a radius of 311.39 feet, a central angle of  $44^{\circ}30'02''$ , a tangent of 127.39 feet, and a chord which bears North  $02^{\circ}23'42''$  West a distance of 235.82 feet to a point, from which a found  $5/8''$  rebar with faded cap bears North  $25^{\circ}58'49''$  East a distance of 0.38 feet and a found "X" on sidewalk bears North  $12^{\circ}02'38''$  East a distance of 0.76 feet;

Thence, 39.03 feet along the arc of a curve to the left which has a radius of 127.98 feet, a central angle of  $17^{\circ}28'25''$ , a tangent of 19.67, and a chord which bears North  $11^{\circ}07'06''$  East a distance of 38.88 feet to a point, from which a found "X" on sidewalk bears South  $26^{\circ}40'24''$  East a distance of 0.78 feet;

Thence, 114.55 feet along the arc of a curve to the right which has a radius of 149.50 feet, a central angle of  $43^{\circ}54'05''$ , a tangent of 60.25 feet, and a chord which bears North  $24^{\circ}19'56''$  East a distance of 111.77 feet to a point on the southerly right of way of Sunland Park Drive, from which a found  $5/8$ " rebar bears North  $31^{\circ}56'09''$  East a distance of 0.44 feet and a found "X" on sidewalk bears North  $03^{\circ}28'46''$  West a distance of 0.83 feet;

Thence along said right of way, 97.56 feet along the arc of a curve to the right which has a radius of 1734.48 feet, a central angle of  $3^{\circ}13'22''$ , a tangent of 48.79 feet, and a chord which bears North  $66^{\circ}28'32''$  East a distance of 97.55 feet to "TRUE POINT OF BEGINNING" and containing in all 74,384 square feet or 1.7076 acres of land more or less.



Jesus D. Ibarra, RPLS No. 6085  
January 6, 2021

